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CASE #	CASE NAME	HEARING NAME
CVPS2407396	MAXFIELD VS FORD MOTOR COMPANY	MOTION FOR SUMMARY ADJUDICATION ON 1ST AMENDED COMPLAINT OF MARY MAXFIELD BY FORD MOTOR COMPANY

Tentative Ruling: Granted.

Summary adjudication is granted as to 6th cause of action for fraud.

Moving defendant to provide notice pursuant to CCP 1019.5.

This is a lemon law action. On November 19, 2024, Plaintiff Mary Maxwell (“Plaintiff”) filed a Complaint against Defendants Ford Motor Company (“FMC”) and Finn Ford (together “Defendants”) asserting causes of action for (1) violation of Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b); (3) violation of Civ. Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; (5) negligent repair; and (6) fraudulent inducement – concealment. On March 4, 2025, the Court sustained FMC’s demurrer to the 6th cause of action for fraudulent inducement – concealment with 10 days leave to amend.

On March 14, 2025, Plaintiff filed the operative First Amended Complaint (“FAC”) against FMC, asserting the same six causes of action. In the FAC, Plaintiff alleges that on May 9, 2022, she entered into a warranty contract with FMC concerning a 2022 Ford F-150 (the “Vehicle”). (FAC at ¶ 7.) The Vehicle exhibited symptoms associated with a transmission defect that impaired the use and/or drivability of the Vehicle, including harsh shifting, gear slippage, shuddering, hesitation during acceleration, and jolting forward when stopping. (FAC at ¶ 10.) Plaintiff presented the vehicle to FMC’s authorized repair facility, but FMC failed to conform the vehicle to the applicable warranty within a reasonable number of attempts. (FAC at ¶ 11.)

FMC now moves for summary adjudication of the 6th cause of action for fraudulent inducement – concealment, arguing that Plaintiff cannot establish this cause of action because (1) she cannot show that FMC had knowledge of a defect at the time of sale; (2) she cannot establish that FMC had a transactional relationship with Plaintiff that triggered its duty to disclose; and (3) it is barred by the economic loss rule.

No opposition filed.

Summary Judgment/Adjudication

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (C.C.P. § 437c(c).) A defendant moving for summary judgment bears the initial burden of proving that there is no merit to a cause of action by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (C.C.P. § 437c(p)(2); *Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1037.) Importantly, a moving defendant establishes a right to summary judgment by showing that the plaintiff lacks the evidence to support at least one element of the cause(s) of action pleaded. (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 756. See also *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

Once the defendant has made such a showing, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar, supra*, 25 Cal.4th at 849.) The opposing party may not rely upon the allegations or denials in its pleadings, but must “set forth the specific facts showing that a triable issue of material fact exists.” (C.C.P. § 437c(p)(2).) Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, disapproved on another ground in *Turner v. Anheuser–Busch, Inc.* (1994) 7 Cal.4th 1238.) However, while summary judgment is no longer considered a “disfavored” procedure, the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) If the plaintiff does not meet his burden of establishing a triable issue of material fact, summary judgment in favor of the defendant is appropriate.

6th Cause of Action – Fraud

The elements of a cause of action for fraud based on concealment are:

- (1) The defendant must have concealed or suppressed a material fact; (2) the defendant must have been under a duty to disclose the fact to the plaintiff; (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.

(*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850, internal quotation marks omitted.)

In seeking summary adjudication of this cause of action, FMC argues that Plaintiff cannot establish that FMC had knowledge of any defect at the time of sale; it had no duty to disclose; and the economic loss rule bars recovery.

1. Prior Knowledge of Defects

Ford first argues that Plaintiff cannot prove it had knowledge of any material fact related to the alleged transmission defect prior to Plaintiff’s purchase of the Vehicle. The issue in a lemon law case is when the defendant knew of the defect. As one court has explained, the distinction between a fraud claim and Song-Beverly claim, is the fraud claim depends on evidence prior to the purchase, whereas the Song-Beverly claim depends on evidence during the warranty period. (*Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, 345.)

“[A] moving defendant may rely on factually devoid discovery responses to shift the burden of proof pursuant to section 437c, subdivision (o)(2) [now subdivision (p)(2)]. Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact.” (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.) The moving party’s burden is to demonstrate a negative – that there is no evidence to support an element of the opponent’s case. (*Rio Linda Unified School Dist. v. Superior Court* (1997) 52 Cal.App.4th 732, 739.) “The defendant must show that the plaintiff does not possess needed evidence, because otherwise the plaintiff might be able to establish the elements of the cause of action; the defendant must also show that the plaintiff *cannot reasonably obtain* needed evidence.” (*Aguilar, supra*, 25 Cal.4th at 854 [italics in original].)

Here, FMC shows by Plaintiff’s discovery responses that Plaintiff has no evidence that FMC had knowledge of a defect in her Vehicle at the time of sale. Specifically, in response to an

interrogatory requesting that Plaintiff “describe in detail all information that forms the basis for YOUR allegations that ‘prior to Plaintiff acquiring the vehicle [Ford] was well aware and knew that the transmission installed in the vehicle was defective but failed to disclose this fact to Plaintiff at the time of sale or thereafter[,]’” Plaintiff responded as follows: “Defendant knew about the Transmission Defect, and its safety risks, Defendant nevertheless concealed and failed to disclose the defective nature of the Vehicle and its transmission to Plaintiff at the time of sale, repair, and thereafter... Prior to purchasing the Vehicle, [she] visited Ford’s authorized dealership website, looked at 2022 Ford F-150 Vehicles, reviewed promotional materials available at the dealership, reviewed the window sticker of the Subject Vehicle, test drove the Subject Vehicle, and spoke with dealer salespeople about the Vehicle... At no point before purchasing the Vehicle did FORD or its authorized dealership personnel disclose that vehicles equipped with the same 10-speed transmission as the Vehicle suffered from one or more defects that can cause the vehicles and their 10-speed transmissions to experience hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering, making the vehicle susceptible to sudden and premature failure.” (UMF # 8; Pisciotta Decl., Ex. 3, no. 65.) In her response to an interrogatory asking her to identify documents supporting the allegation, Plaintiff stated that she “is not in possession of any documents related to Defendant’s marketing materials, advertisements, internal knowledge and investigation documents. Plaintiff is alleging fraudulent concealment – inducement, accordingly, Defendant has exclusive knowledge and possession of documents not available to consumers.” (UMF # 9; Pisciotta Decl., Ex. 3, no. 66.) Further, Plaintiff’s 41-page document production consists only of a copy of the sales contract, the Vehicle’s repair orders, insurance documents, the Vehicle’s registration, and photos showing Plaintiff’s payment history for her loan on the Vehicle, and Plaintiff confirmed in her deposition that she produced all documents in her possession supporting the allegations in her FAC. (UMF ## 11-12, Pisciotta Decl., Ex. 2.)

Based on the above, FMC has met its burden of establishing that Plaintiff has no evidence showing that FMC knew of a defect in Plaintiff’s Vehicle at the time of sale. To the contrary, Plaintiff’s reliance on the Vehicle’s repair orders underscores that Plaintiff’s fraud claim is nothing more than a restated breach of warranty claim resulting from the fact that Plaintiff’s vehicle experienced some issues after the purchase. Therefore, the burden shifts to Plaintiff to submit evidence creating a triable issue of material fact. Since Plaintiff did not oppose the motion or present any evidence, she fails to meet this burden.

2. Duty to Disclose

FMC also argues that this cause of action fails because Plaintiff cannot establish a relationship creating a duty to disclose.

To maintain a cause of action for fraud through nondisclosure or concealment of facts, there must be allegations demonstrating that the defendant was under a legal duty to disclose those facts. (*Los Angeles Memorial Coliseum Commission v. Insomniac, Inc.* (2015) 233 Cal.App.4th 803, 831.) There are four circumstances giving rise to a duty to disclose: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant has exclusive knowledge of material facts not known to plaintiff; (3) when defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336, internal quotations omitted.) “A duty to disclose supporting fraud liability for...concealment may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (*Los Angeles Memorial Coliseum Commission, supra*, 233 Cal.App.4th at 831.) A relationship between the parties is present if there is “some sort of transaction between the parties,” i.e., between a seller and buyer, employer and prospective employee, doctor and patient, and parties to a contract. (*Id.*; *Bigler-Engler v. Breg, Inc.* (2017) 7

Cal.App.5th 276, 311-312 [absent a fiduciary duty, there must be evidence of some transaction, i.e., direct dealings between the plaintiff and the defendant].)

In *Rattagan v. Uber Technologies, Inc.* (2024) 553 P.3d 1213, 1238, the California Supreme Court recently confirmed that the transactional relationship required to state a fraudulent concealment claim requires direct dealings between plaintiff and the defendant. “Such a transaction must necessarily arise from direct dealings between the plaintiff and defendant; it cannot arise between the defendant and the public at large.” (*Rattagan, supra*, 553 P.3d at 1238, citing *Bigler-Engler, supra*, 7 Cal.App.5th at 312.)

Here, FMC submits evidence that Plaintiff purchased the Vehicle from Cypress Ford; Cypress Ford is not an agent of FMC; she had no communications with FMC; and her purchase of the Vehicle was not based on any advertising by FMC. (UMF ## 1-3, 7, 14.) These facts are sufficient to meet FMC’s burden of establishing there was no transactional relationship between it and Plaintiff triggering a duty to disclose.

As Plaintiff did not oppose this motion, she fails to meet her burden of creating a triable issue of material fact, so the motion must be granted.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2404433	WIPF VS DESERT SANDS UNIFIED SCHOOL DISTRICT	HEARING ON MOTION FOR SUMMARY ADJUDICATION ON 2ND AMENDED COMPLAINT OF MARK WIPF BY DESERT SANDS UNIFIED SCHOOL DISTRICT, DENNIS ZINK, SARIT SAIG

Tentative Ruling: Denied.

Responding Plaintiffs to provide notice pursuant to CCP 1019.5.

This is an employment matter. Mark Wipf (“Plaintiff”) is employed by the Desert Sands Unified School District (“District”). He was hired in 2006 to teach Advanced Placement (“AP”) Government classes. He contends in November 2018 he received his first written reprimand for using a video that someone complained about. While the Curriculum Director wrote Plaintiff up and found the video inappropriate, she admitted at the meeting to never actually viewing the video. He received another reprimand in February 2021 but was not given any facts regarding his alleged bad conduct and no due process to check the allegations. In May 2021, he contends that he was vindictively demoted by Dennis Zink (“Zink”) and reassigned to teach regular world history. He alleges that his demotion was for the improper purpose to try and inflate the AP government scores, so the school would have the higher test scores than any other high school in the District. Plaintiff alleges that Zink and Sarit Saig (“Saig”) imposed higher standards on him than they did on other world history teachers. In March 2024, Plaintiff contends that Saig issued Plaintiff a written reprimand for unprofessional conduct. He contends the reprimand was based on false allegations and was done intentionally and maliciously to create a false case against Plaintiff for further demotion, termination, or cause him to resign. These conduct was allegedly done due to Plaintiff, age, national origin, and gender.

The operative pleading is the Second Amended Complaint (“SAC”). It contains the following causes of action: (1) discrimination based on race/national origin/ancestry, age, and gender/sex; (2) harassment based on race/national origin/ancestry, age, and gender/sex; (3) failure to prevent discrimination and harassment; (4) retaliation; (5) hostile work environment; and (6) libel.